

der such provisions invalid as to corporations, as denying the equal protection of the laws. Judgment (1907) 100 S. W. 407, 81 Ark. 519, affirmed.—*Hammond Packing Co. v. State of Arkansas*, 29 S. Ct. 370, 212 U. S. 322, 53 L. Ed. 530, 15 Ann. Cas. 645.

An insurance company connected with a tariff association which fixes rates is not denied the equal protection of the laws by Code Ala. 1896, §§ 2619, 2620, under which the insured or beneficiary in a policy issued by such company may recover, in addition to the actual loss or damage, 25 per cent. of the amount of such actual loss or damage, since such statute places upon an equality in every respect all insurers which, at the time of issuing the insurance, or subsequently, and before trial, were in any way connected with any other persons, associations, or corporations which acted together in fixing insurance rates.—*German Alliance Ins. Co. v. Hale*, 31 S. Ct. 246, 219 U. S. 307, 55 L. Ed. 229.

A foreign corporation ousted and fined in quo warranto proceedings in the highest court of the state for misuser of its license was not denied equal protection of the laws because corporations prosecuted in inferior courts are entitled to trial by jury and can be subjected only to fine of \$100 per day while the combination continued.—(1912) *Standard Oil Co. of Indiana v. State of Missouri ex inf. Hadley*, 32 S. Ct. 406, 224 U. S. 270, 56 L. Ed. 760, Ann. Cas. 1913D, 936, affirming judgment *State ex inf. Hadley v. Standard Oil Co.*, 116 S. W. 902, 218 Mo. 1.

Equal protection of the laws is not denied to a carrier by imposition, under Laws Miss. 1908, c. 196, of a penalty for failure to settle a claim for damages to an intrastate shipment within 60 days from the notice of the claim.—*Yazoo & Mississippi Val. R. Co. v. Jackson Vinegar Co.*, 33 S. Ct. 40, 226 U. S. 217, 57 L. Ed. 193.

An ordinance of a town by which owners of property abutting on any street along which sewer mains have been laid were required to connect with the main sewer under penalty does not deny equal protection of the laws.—*Hutchinson v. City of Valdosta*, 33 S. Ct. 290, 227 U. S. 308, 57 L. Ed. 520.

Singling out railway companies and subjecting them to double damages and attorneys' fees on refusal to pay for killing live stock within 30 days after demand, as is done by Laws Ark. 1907, p. 144, when litigants in general are not subject to the same burdens, does not deprive railway companies of the equal protection of the laws.—*Kansas City Southern Ry. Co. v. Anderson*, 34 S. Ct. 599, 233 U. S. 325, 58 L. Ed. 983, affirming judgment 149 S. W. 58, 104 Ark. 500.

A state statute imposing enormous penalties for violating orders of state railroad commission held violative of Const. U. S. Amend. 14, as denying equal protection of the laws though full hearing is accorded where resort to the courts may be had only at great risk.—*Wadley Southern Ry. Co. v. State of Georgia*, 35 S. Ct. 214, 235 U. S. 651, 59 L. Ed. 405, affirming judgment 73 S. E. 741, 137 Ga. 497.

Penalty of \$5,000 per day for violating orders of state railroad commission imposed by Civ. Code Ga. 1910, § 2667, does not deny equal protection of the laws contrary to Const. U. S. Amend. 14, where judicial review is accorded by Civ. Code Ga. 1910, § 2625.—*Id.*

Carrier failing to resort to remedy accorded by Civ. Code Ga. 1910, § 2625, for relief against order of railroad commission, but attacking validity of order when sued under section 2607, held not denied equal protection of the laws by

being compelled to pay the penalties imposed.—*Id.*

A penalty of from \$300 to \$600, imposed by the so-called Ohio "run-of-mine" or "anti-screen" law, for each separate violation of the act, is not so great as to render the statute a violation of the equal protection of the laws under Const. U. S. Amend. 14, by preventing resort to the courts to test constitutionality of the law.—*Rail & River Coal Co. v. Yapple*, 35 S. Ct. 359, 236 U. S. 338, 59 L. Ed. 607, affirming decree (D. C.) 214 F. 273.

Penalties prescribed by Laws Fla. 1913, c. 6421, § 35, for selling merchandise accompanied by coupons, etc., redeemable in premiums, without payment of license fee, held not so severe as to deny the equal protection of the laws by intimidating against a contest of the validity of the statute.—*Rast v. Van Deman & Lewis Co.*, 36 S. Ct. 370, 240 U. S. 342, 60 L. Ed. 679, reversing order *Van Deman & Lewis Co. v. Rast*, 214 F. 827; *Pitney v. State of Washington*, 36 S. Ct. 385, 240 U. S. 387, 60 L. Ed. 703, affirming judgment *State v. Pitney*, 141 P. 883, 80 Wash. 699.

4248. Imposition of liability for costs or fees.

See 10 Cent. Dig. Const. Law, § 703.

Gen. St. Kan. 1889, c. 82, § 326, providing that, when a prosecution was malicious, the prosecutor shall be adjudged to pay the costs, and committed to jail until they are paid, is applicable to all persons under like circumstances, and does not subject the individual to an arbitrary exercise of power, and hence does not deny him the equal protection of the laws.—*Lowe v. State of Kansas*, 163 U. S. 81, 16 S. Ct. 1031, 41 L. Ed. 78.

Act Tex. April 5, 1889, providing that railroad companies failing to pay claims less than \$50 for labor, damages, overcharges on freight, or for stock killed, within 30 days after presentation thereof, shall be liable for an attorney's fee not exceeding \$10, is void as depriving such companies of the equal protection of the law.—*Gulf, C. & S. F. Ry. Co. v. Ellis*, 17 S. Ct. 255, 165 U. S. 150, 41 L. Ed. 666.

The provision of the Kansas statute (Sess. Laws 1885, p. 258, c. 155, §§ 1, 2), requiring a reasonable attorney's fee for the plaintiff to be allowed and made a part of the judgment on a recovery against a railroad company for damages from fire caused by the operating of its trains, is in the nature of a police regulation, designed to enforce care on the part of railroad companies to prevent the escape of fire from their moving trains, which subjects the property of adjacent owners to peculiar hazard, and has a reasonable relation to the object sought to be accomplished, although the statute imposes no specific duty by way of precaution; and the provision is not in violation of the fourteenth constitutional amendment, as an arbitrary classification of suitors, which deprives those affected of the equal protection of the laws.—*Atchison, T. & S. F. R. Co. v. Matthews*, 19 S. Ct. 609, 174 U. S. 96, 43 L. Ed. 909.

The equal protection of the laws is not denied insurance companies by the provisions of Comp. St. Neb. c. 43, §§ 43-45, allowing a reasonable attorney's fee to plaintiff in case of the unsuccessful defense by an insurance company of a suit on a policy of insurance covering real property which has been totally destroyed by the causes insured against. Judgment, *Farmers' & Merchants' Ins. Co. v. Dabney*, 86 N. W. 1070, 62 Neb. 213, 97 Am. St. Rep. 624, affirmed.—*Farmers' & Merchants' Ins. Co. v. Dobney*, 23 S. Ct. 565, 189 U. S. 301, 47 L. Ed. 821.